

2012 WL 1050413 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Jennette MURIEL, Plaintiff,

v.

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, Police Officer **Santos Collazo**,
Lieutenant Ronald D. Bolte, Police Officer John Doe and Police Officer John Roe, Defendant(s).

No. 0302482-2012.
March 14, 2012.

Summons

Neil Wollerstein, Esq., Attorney for Plaintiff, 59 Maiden Lane, 43rd Floor, New York, NY 10038, (212) 412-4705, File No.: Nw-358.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: New York, New York

March 12 2012

Plaintiff, by his attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF JENNETTE MURIEL

1. That at all times the Plaintiff **JENNETTE MURIEL** was and is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "NYPD", was and is an agency of the defendant, CITY.
4. That on and prior to 9/17/11 and at all times hereinafter mentioned the defendant, POLICE OFFICER **SANTOS COLLAZO** (Shield No. 21911), hereinafter referred to as "COLLAZO" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

5. That on and prior to 9/17/11 and at all times hereinafter mentioned the defendant, LIEUTENANT RONALD D. BOLTE (Tax Reg. 918765), hereinafter referred to as “BOLTE” was and is a police officer with the rank of lieutenant employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 9/17/11 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as “DOE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. That on and prior to 9/17/11 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as “ROE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

8. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **JENNETTE MURIEL** caused the notice of claim, in writing, sworn to by and on behalf of the claimant, the Plaintiff **JENNETTE MURIEL** herein, containing the statement of the name and place of residence of the claimant by the street and number and her attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

9. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

10. That the defendants requested an oral examination pursuant to [General Municipal Law Section 50-H](#) and said request was complied with.

11. That on or about 9/17/11, at approximately 8:30 p.m., the Plaintiff **JENNETTE MURIEL** while lawfully in the vicinity of 1515 Selwyn Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, COLLAZO, BOLTE, DOE and ROE of having committed the crime of Unlawful Assembly and other related charges.

12. That on or about 9/17/11, at approximately 8:30 p.m., the Plaintiff **JENNETTE MURIEL** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, COLLAZO, BOLTE, DOE and ROE, their agents, servants and/or employees, and in particular, by COLLAZO, BOLTE, DOE and ROE.

13. That on or about 9/17/11, and upon arresting the Plaintiff **JENNETTE MURIEL** and depriving her of her liberty, CITY, NYPD, COLLAZO, BOLTE, DOE and ROE took the Plaintiff **JENNETTE MURIEL** to a police station in the County of Bronx and entered her on the records as under arrest.

14. That on or about 9/17/11, the CITY, NYPD, COLLAZO, BOLTE, DOE and ROE further caused Plaintiff **JENNETTE MURIEL** to have her fingerprints and photographs to be taken without her consent and in accordance with police procedures for the arrest of criminals and held her on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

15. That on or about 9/17/11 Plaintiff **JENNETTE MURIEL** was aware of her arrest and confinement, she did not consent to her arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

16. That at all times hereinafter mentioned the actions of CITY, NYPD, COLLAZO, BOLTE, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

17. That by reason of the foregoing, Plaintiff **JENNETTE MURIEL** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF JENNETTE MURIEL

18. Plaintiff **JENNETTE MURIEL** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-17 with the same force and effect as if fully set forth at length herein.

19. That on or about 9/17/11, a criminal complaint was issued by the CITY, NYPD, COLLAZO, BOLTE, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

20. That on or about 9/17/11 a criminal action against Plaintiff **JENNETTE MURIEL** was commenced by CITY, NYPD, COLLAZO, BOLTE, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

21. That solely as a result of the aforesaid, the Plaintiff JENNETTE MURIEL'S life was interfered with.

22. That the criminal action against Plaintiff **JENNETTE MURIEL** was continued for an extended period of time by defendants with malice and bad faith.

23. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **JENNETTE MURIEL**, she was deprived of her liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

24. That on or about 1/23/12, the criminal action against Plaintiff **JENNETTE MURIEL** was terminated favorably by dismissal.

25. That the actions of CITY, NYPD, COLLAZO, BOLTE, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

26. That by reason of the foregoing, Plaintiff **JENNETTE MURIEL** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF JENNETTE MURIEL

27. Plaintiff **JENNETTE MURIEL** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 -26 with the same force and effect as if fully set forth at length herein.

28. That on or about 9/17/11, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **JENNETTE MURIEL** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated and handcuffed by the CITY, NYPD, COLLAZO, BOLTE, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

29. That on or about 9/17/11 CITY, NYPD, COLLAZO, BOLTE, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, COLLAZO, BOLTE, DOE and ROE, within the scope of their employment,

did intentionally, willfully and maliciously assault and batter the Plaintiff **JENNETTE MURIEL** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **JENNETTE MURIEL** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **JENNETTE MURIEL** and caused such battery in and about her head, neck, back, body and limbs.

30. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **JENNETTE MURIEL** suffered great and permanent bodily injury in and about her head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that she was otherwise damaged.

31. That as a result of the aforesaid assault and battery the Plaintiff **JENNETTE MURIEL** was caused to sustain serious, severe, painful and permanent bodily injuries so that she was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure herself of her said injuries and she was and will be prevented from attending her usual occupation and duties.

32. That at all times hereinafter mentioned the actions of CITY, NYPD, COLLAZO, BOLTE, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

33. That by reason of the foregoing, Plaintiff **JENNETTE MURIEL** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF JENNETTE MURIEL

34. Plaintiff **JENNETTE MURIEL** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-33 with the same force and effect as if fully set forth at length herein.

35. That at all times hereinafter mentioned the aforesaid false arrest, assault, battery, false imprisonment and malicious prosecution was caused solely as a result of the negligence of CITY, NYPD, COLLAZO, BOLTE, DOE and ROE, their agents, servants and/or employees.

36. That at all times hereinafter mentioned the actions of CITY, NYPD, COLLAZO, BOLTE, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

37. That by reason of the foregoing, Plaintiff **JENNETTE MURIEL** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF JENNETTE MURIEL

38. Plaintiff **JENNETTE MURIEL** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-37 with the same force and effect as if fully set forth at length herein.

39. That the CITY, NYPD, their agents, servants and employees failed to adequately and properly train, supervise, discipline or in any other way control the behavior or their personnel and in particular defendants COLLAZO, BOLTE, DOE and ROE, and in their hiring practices in the exercise of their functions in that they had a reckless lack of cautious regard for the rights of the public, including Plaintiff **JENNETTE MURIEL** and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

40. Defendants CITY and NYPD have grossly failed to train and adequately supervise its police officers and employees in the fundamental law of arrest, search and seizure especially when its police officers and employees are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers and employees should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

41. Defendant CITY was negligent by failing to implement a policy and instruct police officers who, absent the consent of Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest warrant or search warrant, said police officers of the CITY and NYPD are not to arrest individuals such as Plaintiff herein where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where an individual is not resisting arrest.

42. Defendant CITY is negligent due to its failure to implement a policy or actively enforce the law if any of the following are lacking: i) probable cause must be present before an individual such as the Plaintiff herein can be arrested; ii) excessive force cannot be used against an individual who does not physically resist arrest; iii) an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

43. The forging acts, omissions, and systemic failures are customs and policies of the CITY and NYPD which caused the police officers herein to falsely arrest, falsely imprison, seize, illegally search, commit an assault and battery on Plaintiff, maliciously prosecute and deny her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

44. Defendant CITY was also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

45. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

46. That by reason of the foregoing, Plaintiff **JENNETTE MURIEL** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF JENNETTE MURIEL

47. Plaintiff **JENNETTE MURIEL** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-46 with the same force and effect as if fully set forth at length herein.

48. In arresting Plaintiff **JENNETTE MURIEL**, police officers including but not limited to COLLAZO, BOLTE, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

49. In arresting Plaintiff **JENNETTE MURIEL**, police officers including but not limited to COLLAZO, BOLTE, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **JENNETTE MURIEL** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

50. As a result of the abuse of process by defendants herein, Plaintiff **JENNETTE MURIEL** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

51. That by reason of the foregoing, Plaintiff **JENNETTE MURIEL** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF JENNETTE MURIEL

52. Plaintiff **JENNETTE MURIEL** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-51 with the same force and effect as if fully set forth at length herein.

53. At all times mentioned herein, defendants CITY, NYPD and NYPD police officers COLLAZO, BOLTE, DOE and ROE were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

54. Plaintiff **JENNETTE MURIEL** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to [42 United States Code, Section 1983](#) and [42 United States Code, Section 1988](#).

55. That on or about 9/17/11, defendants CITY, NYPD, COLLAZO, BOLTE, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **JENNETTE MURIEL**, did search, seize, assault and commit a battery and grab the Plaintiff **JENNETTE MURIEL** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **JENNETTE MURIEL** during the arrest process in an unlawful and excessive manner. Plaintiff **JENNETTE MURIEL** was falsely arrested, unlawfully imprisoned and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

56. The above actions of defendants CITY, NYPD, COLLAZO, BOLTE, DOE and ROE resulted in Plaintiff **JENNETTE MURIEL** being deprived of the following rights under the United States Constitution: a) Freedom from assault to her person; b) Freedom from battery to her person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; and f) Freedom from the use of excessive force during the arrest process.

57. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

58. Defendants CITY, NYPD, COLLAZO, BOLTE, DOE and ROE subjected Plaintiff **JENNETTE MURIEL** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **JENNETTE MURIEL'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

59. The direct and proximate result of the defendants CITY, NYPD, COLLAZO, BOLTE, DOE and ROE acts are that Plaintiff **JENNETTE MURIEL** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

60. That by reason of the foregoing, Plaintiff **JENNETTE MURIEL** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **JENNETTE MURIEL** demands judgment against the defendants on the First Cause of Action through the Seventh Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: New York, New York

March 12, 2012

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff

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File No.: NW-358

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